

GZ: 2022-0.560.569 dated September 7, 2022 (Case number: DSB-D124.1058/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Julius A*** dated July 29, 2022 against himself regarding a violation of the right to confidentiality as follows:

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The complaint is dismissed.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 8 of the Charter of Fundamental Rights of the European Union (EU-CFR), OJ No. C 364 of December 18, 2000, p. 1.

REASONING

A. Submissions of the Parties and Procedural History

The complainant stated in his submission to the Data Protection Authority dated July 29, 2022, that he had disclosed the official email address and the official telephone number of Mag. Ernst N*** in the form of the Data Protection Authority during a complaint to the Data Protection Authority on January 22, 2022. The complaint ("self-report") is therefore submitted to clarify whether a data protection violation is possible with the form of the Data Protection Authority and whether such a violation is present in this case.

B. Findings of Facts

The Data Protection Authority bases its findings on the submissions under point A.

C. From a legal perspective, it follows that:

The right to complain of a data subject is enshrined at both the national and European levels:

Both Art. 77 para. 1 GDPR and § 24 para. 1 DSG grant a data subject the right to lodge a complaint if there is a violation concerning the processing of their personal data.

Moreover, the European Court of Justice has already stated that Art. 8 para. 1 and para. 3 EU-CFR grants a data subject the right to submit a request for the protection of their fundamental rights to the national supervisory authorities (cf. the judgment of the ECJ of October 6, 2015, Schrems I, para. 58 with references).

One of the necessary prerequisites for asserting the right to lodge a complaint is that the complaining person is personally affected by the processing (cf. Schweiger in Knyrim, DatKomm, Art. 77 GDPR (as of December 1, 2021, rdb.at), para. 8).

It is thus a right that belongs to a data subject, but not, for example, to a controller or processor (cf. Schweiger in Knyrim, DatKomm, Art. 77 GDPR (as of December 1, 2021, rdb.at), para. 19).

In this case, it follows from the submissions of the complainant that he is not the affected person himself, but rather has possibly unlawfully disclosed the personal data of Mag. Erwin N*** – as the actually affected person – and is now filing a complaint against himself.

Due to the lack of personal relevance for the complainant, he is therefore not authorized to submit the present complaint, and the request of the complainant for a complaint is not admissible.

It was therefore necessary to decide accordingly.

Notwithstanding this, the actually affected person is free to have the disclosure made in this case reviewed by the Data Protection Authority in the course of a complaint procedure.